

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Miriam Lynch	Team: Squad #09	CCRB Case #: 201601350	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Friday, 02/19/2016 10:30 AM	Location of Incident: West 180th Street between Audubon Avenue and Amsterdam Avenue	18 Mo. SOL 8/19/2017	Precinct: 34
Date/Time CV Reported Fri, 02/19/2016 12:12 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 02/19/2016 12:12 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Andry Duarte	1103	946957	NARCBMN
2. DT3 Larry Maraj	4801	927129	NARCBMN
3. SGT Joseph Grimm	03514	946688	NARCBMN

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Andry Duarte	Abuse: Detective Andry Duarte stopped the vehicle in which § 87(2)(b) was an occupant.	A . Substantiated
B . DT3 Larry Maraj	Force: Detective Larry Maraj used physical force against § 87(2)(b)	B . Unsubstantiated
C . SGT Joseph Grimm	Abuse: Sergeant Joseph Grimm searched the vehicle in which § 87(2)(b) was an occupant.	C . Unsubstantiated
D . DT3 Andry Duarte	Abuse: Detective Andry Duarte searched the vehicle in which § 87(2)(b) was an occupant.	D . Unsubstantiated
E . DT3 Larry Maraj	Abuse: Detective Larry Maraj searched the vehicle in which § 87(2)(b) was an occupant.	E . Unsubstantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

On February 17, 2016, at approximately 11:00 a.m. § 87(2)(b) was driving near the intersection of West 180th Street and Saint Nicholas Avenue in Manhattan. She had gone inside of two bodegas on the block in the hopes of purchasing peppermint tea, but neither bodega had the tea. She then drove east, towards Amsterdam Avenue, when she was stopped by Sgt. Joseph Grimm and Det. Larry Maraj, both of Manhattan North Narcotics, who stopped her from an observation made and transmitted by Det. Andry Duarte, also of Manhattan North Narcotics, who suspected § 87(2)(b) of purchasing crack cocaine from the bodegas (**Allegation A**). Shortly after stopping her vehicle, Det. Maraj handcuffed § 87(2)(b) allegedly pushing her against a vehicle when he did so (**Allegation B**). Det. Duarte then arrived on the scene, and drove § 87(2)(b)'s vehicle out of traffic. Sgt. Grimm, Det. Duarte, and Det. Maraj then allegedly searched the front seat of § 87(2)(b)'s vehicle (**Allegations C, D, and E**). § 87(2)(b) was not arrested, issued a summons, or injured as a result of this incident. § 87(2)(g), § 87(4-b)

§ 87(2)(g)

No video footage was available for this incident.

Mediation, Civil and Criminal Histories

- This case was sent to the mediation unit on March 17, 2016. It was returned from the mediation unit on June 19, 2016, after Sgt. Grimm rejected mediation.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- On July 22, 2016, a request for a notice of claim for § 87(2)(b) was returned from the New York City Office of the Comptroller with negative results (Board Review 2).

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) § 87(2)(b)
- Det. Duarte has been a member of service for eight years. One prior CCRB complaint has been filed against him, for a total of one CCRB allegation, § 87(2)(g), § 87(4-b) (Board Review 4).
 - § 87(2)(g)
- Sgt. Grimm has been a member of service for eight years. Four prior CCRB complaints have been filed against him, with ten previous allegations (Board Review 4).
 - § 87(2)(g)
- Det. Maraj has been a member of service for fifteen years. Six prior CCRB complaints have been filed against him, with a total of seven previous allegations (Board Review 4).
 - § 87(2)(g)

Findings and Recommendations

Allegations Not Pleaded: § 87(2)(g)

Allegation A –Abuse of Authority: Detective Andry Duarte stopped the vehicle in which § 87(2)(b) was an occupant.

It is undisputed that Sgt. Grimm and Det Maraj stopped § 87(2)(b)'s car after she went into two bodegas on Saint Nicholas Avenue near West 181st Street. It is also undisputed that Det. Duarte observed § 87(2)(b) and that he directed Sgt. Grimm and Det. Maraj to stop

§ 87(2)(b) stated that she went to a bodega on Saint Nicholas Avenue and West 181st Street in order to purchase peppermint tea. In the first bodega that she went into, she was told that there was no tea. An individual in the bodega told her to go to another bodega several doors down to check for tea. She then went into the shop that the individual told her to enter. That shop did not have peppermint tea either, so she got back into her car and drove towards Amsterdam Avenue. Just before she reached Amsterdam Avenue in her car, and was stopped at a red light, she was approached by Sgt. Grimm and Det. Maraj (Board Review 5).

[illegible]

§ 87(2)(b) When § 87(2)(b) walked into the bodega, she was carrying an unspecified amount of dollar bills in one of her hands. Det. Duarte's view of § 87(2)(b) and the male individual was then obstructed by a piece of furniture inside of the bodega. He did not see what either party was doing with their hands during the interaction.

§ 87(2)(b) walked out of the bodega several seconds later. Det. Duarte stated that he heard the second male individual male state from three to four feet away, “Don’t stick around. It’s hot around here.” Det. Duarte then sent a description of § 87(2)(b) and her location over a point-to-point radio to Sgt. Grimm and Det. Maraj (Board Review 6).

Both Sgt. Grimm and Det. Maraj stated that they were given a description of § 87(2)(b) over the point-to-point radio by Det. Duarte, and told that he suspected her of making a narcotics transaction (Board Review 7 and 8).

The Stop, Question, and Frisk Report prepared for this incident by Det. Duarte listed “actions indicative of engaging in a drug transaction,” as the primary reason for the stop.

Additional factors included the time of day or week corresponding to criminal activity, associating with individuals known for their criminal activity, changing directions at the sight of an officer, and giving evasive, false, or inconsistent responses to officer questions. Det. Duarte confirmed that § 87(2)(b) had tried walking away from the officers after she was already handcuffed, and gave evasive answers to questions after the stop had already been initiated (Board Review 9).

People v. DeBour, 40 N.Y.2d 201 (1976) allows officers to stop anyone that they reasonably believe to be engaged in, about to engage in, or just having engaged in criminality (Board Review 10).

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **substantiated**.

Allegation B- Force: Detective Larry Maraj used physical force against § 87(2)(b)

Allegation C- Abuse of Authority: Sergeant Joseph Grimm searched the vehicle in which § 87(2)(b) was an occupant.

Allegation D- Abuse of Authority: Detective Andry Duarte searched the vehicle in which § 87(2)(b) was an occupant.

Allegation E- Abuse of Authority: Detective Larry Maraj searched the vehicle in which § 87(2)(b) was an occupant.

It is undisputed that Det. Maraj handcuffed § 87(2)(b) shortly after he initiated contact with her. It is undisputed that § 87(2)(b) got out of her car on her own power, and was not pulled out of her car. It is also undisputed that while § 87(2)(b) was handcuffed, Det. Duarte entered her vehicle, and drove it to the end of the intersection in order to move it out of traffic. § 87(2)(g)

§ 87(2)(b) alleged that Det. Maraj pushed her against the side of a vehicle when he was placing her in handcuffs. She stated that Det. Duarte then entered and moved her vehicle to Amsterdam Avenue, approximately half of one block from where it had been stopped. After Det. Duarte drove the car to the end of the intersection, he, Det. Maraj, and Sgt. Grimm allegedly searched the front seat of her vehicle, with Det. Duarte in the front driver's seat, and Sgt. Grimm and Det. Maraj leaning into the front seat of the car (Board Review 5).

Det. Maraj and Sgt. Grimm admitted to being present when § 87(2)(b) was handcuffed. They stated that Det. Maraj did not push her against a car. They both stated that the only individual to enter § 87(2)(b)'s car was Det. Duarte, and that neither he nor they searched § 87(2)(b)'s vehicle (Board Review 7 and 8). Det. Duarte also denied searching § 87(2)(b)'s car (Board Review 6)

All parties interviewed testified that Det. Duarte arrived on the scene of the stop after § 87(2)(b) was handcuffed. He admitted entering § 87(2)(b)'s car to drive it to a place

where it would be out of traffic, but stated that he did not search the vehicle, and neither did any other officer (Board Review 6).

§ 87(2)(g)

§ 87(2)(g)

it is recommended that **Allegations B, C, D, and E** be closed as **unsubstantiated**.

§ 87(2)(g), § 87(4-b)

Squad #9

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date